

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*)

Plaintiffs do not, through the Opposition, request leave to amend, let alone show how they may do so. However, the Court is aware – from Plaintiffs’ September 9, 2026, ex parte application – that it has prepared a Third Amended Complaint which they believe states a good cause of action against the Individual Defendants. For that reason, the Court grants Plaintiffs leave to amend. Plaintiffs should be mindful that the Court will be disinclined to grant leave to amend for a fourth time in the event their Third Amended Complaint does not state a good cause of action as to the Individual Defendants.

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Massimo Falsini et al v. Wyman Property Management et al

24CV001280

[1] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL CALISTOGA THIRD STREET INVESTORS RESPONSES TO **REQUEST FOR PRODUCTION OF DOCUMENTS SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **CALISTOGA THIRD STREET INVESTORS** AND ITS COUNSEL
[Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Calistoga Third Street Investors (“Investors”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Request for Production of Documents, Set Two (“Requests”) within 10 calendar days of service of notice of entry of order. Investors is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Investors to serve verified, code-compliant responses, without objections, to the Requests within ten (10) calendar days of service of the Court’s order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Investors from waiver; and monetary sanctions in the amount of \$1,247.90 against Investors and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10.) Thus, Investors shall serve verified, code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*, § 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Investors acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Investors failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Investors is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[2] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL CALISTOGA THIRD STREET INVESTORS RESPONSES TO **SPECIAL INTERROGATORIES SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **CALISTOGA THIRD STREET INVESTORS** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Calistoga Third Street Investors (“Investors”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Special Interrogatories, Set Two (“Special

Interrogatories”). Investors is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Investors to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court’s order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Investors from waiver; and monetary sanctions in the amount of \$1,247.90 against Investors and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10.) Thus, Investors shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Investors acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Investors failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl.

at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Investors is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[3] PLAINTIFF MASSIMO FALSINI'S MOTION TO COMPEL WYMAN PROPERTY MANAGEMENT RESPONSES TO **REQUEST FOR PRODUCTION OF DOCUMENTS SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **WYMAN PROPERTY MANAGEMENT** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Wyman Property Management ("Wyman") shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini's ("Plaintiff") Request for Production of Documents, Set Two ("Requests") within 10 calendar days of service of notice of entry of order. Wyman is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Wyman to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court's order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Wyman from waiver; and monetary sanctions in the amount of \$1,247.90 against Wyman and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (Code

Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10, Exh. A.) Thus, Wyman shall serve verified, code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*, § 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Wyman acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Wyman failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Wyman is GRANTED IN PART. Wyman is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[4] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL RESPONSES TO **SPECIAL INTERROGATORIES SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **WYMAN PROPERTY MANAGEMENT** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Wyman Property Management (“Wyman”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Special Interrogatories, Set Two (“Special Interrogatories”). Wyman is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Wyman to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court's order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Wyman from waiver; and monetary sanctions in the amount of \$1,247.90 against Wyman and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris ("Harris Decl.") at ¶¶ 2-10.) Thus, Wyman shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.290, subd. (c).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Wyman acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Wyman failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Wyman is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The matter is set for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to Code of Civil Procedure section 585, subdivision (b), for an order granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's files.

Based on the foregoing, the Motion is GRANTED.

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[1] DEMURRER TO PLAINTIFF MARBIN SANTIS RUIZ'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff is granted 10 days' leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide a Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.